



File No: EXP202209078

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against COLEGIO VIRGEN DE EUROPA, S.L. (hereinafter, the defendant), through the Agreement that is transcribed:

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File No: EXP202209078

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 14/08/2022. The complaint is directed against COLEGIO VIRGEN DE EUROPA, S.L. with NIF B28773794 (hereinafter, the defendant). The reasons for the complaint are:

Illegal processing of images of their 3-year-old son by the educational center where he has been enrolled since April 2022, and they do not have authorization for such processing. They add that "in the written enrollment process, they stated in the contract that they did not authorize the processing of images."

They state that the School has published those photos:

1) On its FACEBOOK profile on April 26 and 28, 2022, "sports day" (April 26, 2022). They provide document 2, with images of children whose faces have been blurred so that they cannot be identified, although without this, they would be identifiable by distance and the type of shot.

2) In a WhatsApp broadcast list, while in their class, on May 27, 2022.

They state that upon receiving the images, "I immediately called the communication officer, who was the sender of the photos, asking him to delete them, and I insisted again that they were not authorized." However, since the images were sent to a "broadcast list" via WhatsApp, it has not been possible to delete them. After finishing the phone conversation, the communication officer continued sharing more photos, in one of which he placed an emoticon on my son's face, as can be seen in the annex "Document 3" that contains the communications. In this case, despite being told that "they had done what was in their power to delete the aforementioned images, no communication was sent to the people on the broadcast list warning of the error made and requesting their deletion, so they remain in the possession of third parties without knowing the use that has been made or will be made of them and without warning from the center that they are illegal." In document 3, an image of a phone with photographs of a group of children inside the school can be seen, blurring the faces so that they cannot be identified, although without this, they would be identifiable by distance and the shot, and it refers to conversations from Friday, May 27, and Monday, May 30, with part of a conversation: in which it is said what the children aged 2, 3, and 4 years old have eaten, and what they did that morning, and: "Ok but in the ones you sent first, it still shows up," "I have deleted it within my possibilities, for the people who have not accessed them yet," "I apologize again and we will try to avoid that it is in the group activities that are sent."

The claimant continues indicating that "Subsequent to this, I held an in-person meeting with the Manager of the center regarding the events that occurred, informing her again that they do not have authorization for this, facts that she already knew according to what she told me," and also the little control that is had over them, which could be used by anyone who has access to them and without knowledge that they are illegal.

- On July 27, 2022, after the school year ended, during attendance at the summer camp organized by the defendant and on its premises, along with other minors who do not attend during the school period, "a new broadcast list has been created with all the families," "maintaining the same consent regarding data protection that already existed during the school year for the minors attending classes, so in our

case, we continue opposing the processing of images in writing, with no change in this regard.”

“In this case, due to an error in the registration of the broadcast list, my wife and I were included in it two weeks later.”

“Due to this, I asked the Manager to send us the images from the camp that had already been sent previously to know the activities carried out to date. In response to our request, we received a large number of images. However, images from some activities were missing, such as, for example, a trip to a farm school, so we checked the received images with other families. Upon doing this check, we discovered that my son appeared again in images that were sent to the rest of the families of the camp, but coincidentally we had not received, and in this case with more grievance since he is seen in close-up, full body and in swimwear. They also could not be deleted for the reasons described above. Annex “Document 4” is attached, which, according to the claimant, proves the non-compliance. In the image, two children can be seen at the head of the image and another one marked with an arrow behind, all of whom could be identified if it were not because the image has been blurred so that third parties cannot be identified.

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- On July 29, 2022, on the last day of camp, the school sent, via a broadcast list to all families, a link to a Google Drive folder containing a series of photographs from the last week of camp, and once again my son can be seen in one of them, although in this photograph he is more distanced from the main focus and is not entirely clear, but he could still be identified and is referred for evaluation by the Agency itself. In the photo, a child (with faces blurred) is seen in the foreground, who is identified, and about three meters to the right, behind, in profile, is a child wearing the same swimsuit as noted in document 4. The claimant states that this Google Drive folder has no access restrictions and anyone with the link can enter, as it does not include any email filter. Consequently, on that same day, an attempt was made to contact the center and the person responsible for publishing the images without success, in addition to reporting the image on Google Drive, from which they would have received a notification via email.

On August 1, 2022, after contacting my son's tutor, the center proceeded to remove the photo, stating that “attached as an annex is ‘document 5’ which, according to the claimant, proves the non-compliance.” Alongside the title “****TITLE.1,” 15 numbered JPG images can be seen (all with blurred faces), indicating the XXXX and upon enlarging it, a child is more clearly distinguished in the foreground and another in the background, to his right, marked with an arrow, seen in profile, wearing the same swimsuit as the one in the photo of document 4.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the party being complained against, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 7, 2022, as recorded in the acknowledgment of receipt in the file.

In the forwarding, they were requested, in order to understand the circumstances of the specific case and to admit or not the complaint for processing:

- Provision of technical reports or recommendations prepared by the Data Protection Officer or by the security officer, regardless of their format, regarding the processing for which information is requested, as well as on the subsequent actions taken or their absence, derived from the aforementioned technical reports or recommendations.
- The decision made regarding this complaint.
- Report on the causes that led to the incident that originated the complaint.
- Report on the measures taken to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

- Any other information deemed relevant.

Additionally, if the complaint is related to the publication of personal data on the Internet:

- Data of the account used for publication (email, IPs, etc.).
- Information provided to the affected person regarding the processing of their data referred to in Article 13 of the GDPR.
- Procedure enabled for the affected parties to oppose the publication of their data or request its deletion.
- Document justifying the consent of the affected person for publication or, where appropriate, the legal basis that would legitimize the publication.
- Document justifying the deletion of the data, if applicable.
- Document justifying the correction of the error (in cases of data cross-referencing, for example).

On October 7, 2022, a written response was received by this Agency indicating:

1- From the DPO, the obligation of compliance with the principles of the GDPR has been conveyed to the responsible party.

They distinguish:

a) Taking images as part of the educational function, in which case, the centers are legitimized to do so.

b) Those that do not respond to this function, for example, the dissemination of the center and its activities, for which consent must be obtained.

"Likewise, it is possible to take images of students at certain events held in the school environment solely for the purpose of allowing parents access to them. This access to the images should always take place in a secure environment."

2- It indicates that data subjects can exercise their rights, and the ways to do so.

3- It indicates that they have a security policy as a basis established for the regulatory adaptation process of the responsible party, reproducing principles of the GDPR such as the limitation on data collection to its purpose, the information on data collection, the

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confidentiality in the communication of data, the commitment to confidentiality of all parties involved in the processing.

4- Regarding the decision made concerning the complaint, they state:

a)

They have reviewed procedures and documentation, including the process of verifying the "informed consent regarding data protection" documents, with the intention of "mitigating the risk of experiencing incidents like the one that occurred in this case." "They have adopted additional supervision measures beyond those already existing in the review process of the clauses."

5- Regarding the accreditation of the response to possible exercises of rights formulated, it indicates that no claim has been made.

6- Regarding the causes that motivated the incident that led to the complaint, it states that it was the "sending of photographs to the families of the students of the course," and that "the review of the clauses and consent granted regarding data protection for this specific purpose was carried out."

7- Regarding the measures adopted to prevent similar incidents from occurring, it indicates the review of the clauses in compliance with the duty of information, as well as the consent of the holder for each of the purposes.

It will proceed to reinforce the "consultation procedure of the privacy policy at least every three months, incorporating this modification into the management procedure of student enrollments."

- A training program has been planned for the workers responsible for managing communications.

- It estimates that the reported facts do not aim at seeking any type of profit by the School.

THIRD: On 14/10/2022, it is additionally requested:

"Accreditation that the images of the minor published without the consent of their parents have been

removed both from the school's Facebook page and from the other applications in which they were published."

On 21/10/2022, the respondent indicates:

The means of publication were 1) the social network FACEBOOK, on sports day, it was uploaded and "this publication has been completely removed."

2) Through the "tutors' group" of the minors on WhatsApp, sending photos of the camp with a link to a DRIVE folder for the tutors to access the folders. The folders were protected, in compliance with the appropriate security measures for data processing. This DRIVE folder was deleted the day after the request by the tutor of the minor.

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Another photograph sent, from the activity called "Puppet Show," through the WhatsApp group, was deleted without undue delay.

Furthermore, all the content of the group has been deleted for all participants.

On 10/26/2022, considering the claim addressed, the claim was not admitted for processing.

FOURTH: The claimant submitted a request for reconsideration, stating, in summary:

- The published photos do not have an educational purpose; those posted on social media are for publicizing the center or for the enjoyment of the parents themselves. The images were sent to families of the school and those from the camp to families of children who were enrolled in that activity.

Regarding the photos "that were sent in a GOOGLE folder," only those from the last week of the camp were included, and "after I requested that the photo of our child be removed, they deleted that photo; the folder was not deleted until months later, and it was not uploaded with access filters since I myself accessed it from several email accounts without any problems."

"The images of the minors were sent to the parents through broadcast lists and not through WhatsApp groups, so each parent received a message directly from the phone number of the person responsible for the photographs; the requirement to receive images from a broadcast list is that you have that number saved in your contacts."

He provides screenshot 1 indicating that it is how "I have the contact saved in my phone," showing in the WhatsApp application the "contact info" with the school logo.

In these broadcast lists, the deletion of messages does not work the same way as in private chats or WhatsApp groups. He provides a partial screenshot indicating: "messages sent to a broadcast list cannot be deleted."

"Although in the response from the educational center they state that they have deleted the images for all participants, when it is through broadcast lists and they arrive individually, they were aware that at the time these events occurred, the images could not be deleted if the person who had received them had already accessed them or had automatically downloaded them to their phone, facts that the person responsible for sending the images acknowledged to me in writing, a screenshot that is attached in SCREENSHOT 2 and can be seen in the message received on May 27 at 16:00."

Screenshot 2 is a chat message accompanied by three photos (in this case without face blurring) showing the minors in class, +10 photos with the literal description of a person narrating what the children are doing and a message indicating on 05-27-2022 OK, but the ones you sent first are still showing, and the response, "I have deleted it within my possibilities, for those who have not accessed them yet."

"A screenshot taken this month is also attached, where the date can be seen and which demonstrates that the photos have not been deleted, and it should be added that they can no longer be deleted in any way, screenshot 3, corresponding to the day of the puppet show, showing not one but several images in which my child is perfectly recognizable." In this screenshot 3, a photo with close-ups of the faces of the minors in class can be seen.

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Friday 11/11/2022. This capture coincides with the one seen in document capture 3 of the complaint, where the date Friday 27/05 and Monday 31/05 is visible.

“For this same reason, I later held meetings with more responsible individuals at the center warning about the error made, in addition to the difficulties, not to say impossibility, of being able to delete the information from the WhatsApp servers, and if at that moment the educational center had done something like notifying the other recipients of the images, a follow-up of the photographs could have been done, and had a real data protection protocol been developed, we would not have encountered the subsequent failures, which there were.”

“Regarding the one sent to the other families in the first week of the camp, of which we became aware through third parties since we did not receive it as I explained in the first complaint,” and which is attached in CAPTURE 4 (with an image of your child in swimwear), we discovered that image a month after it was sent to their distribution lists, so, in this case, as in the previous ones, even if a deletion was made for everyone, it would not be possible since, since August, WhatsApp allows deletion at most up to 60 hours after sending, making it impossible already.

The claimant states that “In fact, I had the opportunity a few days ago to meet some of the parents of my son's former classmates from that school, and they confirmed to me that they still have all the photos and no notification that they are unlawful, and that they actually continue to use the WhatsApp application in the same way to receive photos from the school.”

The claimant indicates that “as clarification, all information related to WhatsApp can be verified by reviewing its update history, for example, the deletion up to 60 hours after sending is from August and has number YYYYYY of its update.”

He considers the response from the respondent inconsistent, and since they do not present evidence that the images have been deleted, as it is impossible, he requests that a sanctioning procedure be initiated.

The appeal with the documentation presented by the claimant is transferred to the respondent on 5/12/2022.

The respondent provides a copy of certificates for employees who have undergone training actions in the GDPR from 31/10 to 24/11/2022, for 30 hours for 9 employees, and on 26/10/2022 a face-to-face training session with all the personnel of the entity to promote a culture of data protection.

He states that the criteria that should be maintained for images published on social networks and the website, which represent group activities of the center and convey the pedagogical project, have been reminded, but never children in close-up without activity development. The rest of the document appears obscured with strikethrough.

- They provide a copy of the audit report of information systems in the field of data protection, with no date or part of its content visible as it is obscured in the form of strikethrough.

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- Clear and written instructions have been established regarding the minimum and required indications for users involved in the capture and dissemination of images, fundamentally emphasizing the necessity of prior consent, minimum information, orientation of images not to close-ups, images from a distance, etc., among others:

They state that they are sending a communication sent on 12/09/2022 to ratify each of the measures implemented by the worker assigned to this task in annex four.

- Regarding the concept of educational function, the general communication is sent to parents, mothers, and legal guardians of minors, with the purpose not being, in any case, advertising or profit for the school, but rather participation in constant communication with them, with the aim of keeping

them informed about the activities and status of the minors.

Regarding the sending of photographs of minors who are not enrolled in school at the time it begins, in this case at a camp, a distribution list is created prior to the authorization of the parents, mothers, or guardians of the minor, and is open to all families who enroll their children in the activity, but in no case is it an indiscriminate sending; it is subject to the previous conditions.

As for the space enabled in DRIVE to share images, it was limited to the parents, mothers, and guardians of the minors belonging to the camp. A formal mandatory communication has been established for each sending that is made.

On 14/03/2023, it was resolved to accept the appeal for reconsideration and to admit the claim filed. FOURTH: According to the report collected from the AXESOR tool, the entity COLEGIO VIRGEN DE EUROPA, S.L. is a medium-sized company (SME), established on 25/06/1982, with a turnover in the year 2020 of (...) €, and in 2021: (...) €, a variation of 12.33%, with (...) "permanent" and "non-permanent" employees "...".

LEGAL GROUNDS

I

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The GDPR defines personal data in its Article 4.1 as:

"any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

From the perspective of the format or medium in which the information is contained, the concept of personal data includes information available in any form, alphabetical, numerical, graphic, photographic, or sound, for example. From this point of view, the concept includes information preserved on paper, as well as information stored on a computer memory, using binary code, or on a video tape, for example. This is a logical consequence of the inclusion of the automatic processing of personal data within its scope of application.

The GDPR defines data processing in Article 4.2 of the GDPR: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

The respondent is responsible for the processing carried out by the personnel providing services in their organization, and as such, responds to the definition of data controller in Article 4.7 of the GDPR, which states:

"data controller or controller: the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States;"

The image of a person is personal data as it allows for their identification without any doubt, and it may also provide or contain additional information such as the school they attend, to give just one example. As such, according to the LOPDGDD in its Article 70:

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“1. They are subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law:

a) The data controllers

The processing of personal data in the form of images, in this case in photos, that are sent through "broadcast lists" on WhatsApp, on the FACEBOOK page of the School, publicly, and on GOOGLE, DRIVE folder, both during the school period and at the camp of the 2022 course, must have a legal basis, from those enumerated in Article 6.1 of the GDPR.

1. The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

Due to the affected scope, the provisions of Article 92 of the LOPDGDD become relevant, which states:

“Educational centers and any natural or legal persons that carry out activities involving minors shall guarantee the protection of the best interests of the child and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

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When such publication or dissemination is to take place through social network services or equivalent services, they must have the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law.

The photos were sent with various references to the status of the minors or what they were doing, being recognizable by capturing close-ups or nearby shots, and there was no documented consent from the complainant.

Regarding the exposure of images that respond to the concept of "educational function," which the respondent claims must be indicated, it should be noted that the publications made publicly on the SCHOOL's FACEBOOK, those sent to parents or guardians via WhatsApp, or through a folder in GOOGLE DRIVE with a link, during the summer camp hardly seem to fit the classification of teaching or educational function as in these cases, either because they are accompanied by literal summaries of what the children did, or due to the context in which they were made and in which they are exposed.

The respondent is accused of a violation of the aforementioned Article 6.1 of the GDPR, since, despite not having the complainant's consent, it collected images and published them on different dates and media such as Facebook, DRIVE, or WhatsApp broadcast list, for which it presumably does not have a legitimizing basis for its processing.

III

Article 83.5 states that "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" The fines imposed must be, in each case, individual, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which indicates:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;

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d) the degree of responsibility of the data controller or the processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or the processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the

infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

For the infringement of Article 6.1 of the GDPR, for the purpose of determining the amount of the sanction, the following circumstances apply in this case:

- Article 83.2.a) “the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered.”

The images have been sent through three different channels, when it is clear that the complainant had not given consent for such purpose. One of the channels through which the photos are sent, in distribution lists, does not allow for a common deletion for all when the images are sent or after they have been sent, losing control of the data because third parties who receive them could forward them or expose them publicly. On the other hand, the facts are repeated when, after the course is finished, the respondent organizes the camp activity, which adds to the previous points and can only constitute aggravating factors.

- Article 82.2.b) “the intent or negligence in the infringement”; which indicates that it has not happened once, but has been repeated after the complainant pointed it out, which shows that the matter was not taken seriously, as photos were sent again without review, and care must be taken when exchanging data about children, which can only be considered an aggravating factor.

Furthermore, in accordance with the provisions of Article 76.2.f) of the LOPDGDD, it is taken into account in this case that the rights of minors are affected.

The sum of circumstances allows in this initiation agreement for the sanction to be set at 15,000 euros, without prejudice to what results from the instruction of the procedure.

The LOPDGDD indicates in its Article 71:

“Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

The specification is contained in Article 72.1 of the LOPDGDD which states:

“Based on their classification, the infringements that constitute a substantial violation of the articles mentioned therein, and in particular the following, are considered very serious and shall prescribe after three years.”

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a) The processing of personal data without any of the lawful conditions for processing established in Article 6 of Regulation (EU) 2016/679.

IV

Article 58.2 of the GDPR states:

“Each supervisory authority shall have all of the following corrective powers:

“b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;”

“i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;”

In this case, it is appropriate to impose an administrative fine for the repeated conduct regarding the handling of their data which, despite having been carried out by the complainant, has not been taken into account, and because it affects minors.

V

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of

appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with a possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against COLEGIO VIRGEN DE EUROPA, S.L., with NIF B28773794, for the alleged infringement of Article 6.1 of the GDPR, in accordance with Article 83.5 a) of the GDPR, classified for the purposes of prescription in Article 72.1.b) of the LOPDGDD.

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SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of 1/10, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint lodged by the complainant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate for Data Inspection.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPCAP, the sanction that may correspond would be 15,000 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to COLEGIO VIRGEN DE EUROPA, S.L., with NIF B28773794, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the case number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With this reduction applied, the sanction would be set at 12,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With this reduction applied, the sanction would be set at 12,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to that which corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 9,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. In the event that they choose to proceed with the voluntary payment of either of the amounts indicated

above, 12,000 euros or 9,000 euros, they must do so effectively through

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its deposit into account No. IBAN: ES00-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it adheres.

Furthermore, you must send the proof of deposit to the General Subdirectorato de Inspección to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the agreement to initiate or, if applicable, from the draft agreement to initiate. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-100523

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 1, 2023, the party being claimed has proceeded to pay the fine in the amount of 9,000 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202209078, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to COLEGIO VIRGEN DE EUROPA,

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S.L..

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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